

"allowance and amount of costs. Provided always, that no such rule or order shall have the effect of altering the principles or rules of decision of the said Court, or any of them, or of abridging or affecting the right of any party to such remedy as, before the passing of this Act, might have been obtained in the said Court, but may in all respects extend to the manner of obtaining such remedy by regulating the nature and form of process and pleadings, and the practice of said Court as regards the method of taking, receiving, publishing, using, and hearing of testimony, the examination of witnesses or parties, or any other matter or thing which may seem expedient for better attaining the ends of Justice, and advancing the remedies of Suitors in the said Court."

Under the very ample powers given by this section, the Court has issued the orders of 1850 and 1851, which will be found in their proper order in the following pages.

Country practice.

The conduct of causes in Chancery has been, until recently, necessarily confined to Toronto, where the Court is situated, and the Master's and Registrar's Offices kept. An Act of last Session, 13th and 14th Vic. Ch. 50, dated 10th August, 1850, entitled, "An Act for the more effectual Administration of Justice in the Court of Chancery in Upper Canada," effects an important change in this respect. It empowers the Judges to appoint Masters and Deputy Registrars "in such localities as the said Judges may consider necessary and expedient for the purpose of promoting as far as possible the local administration of Justice;" and to make rules and orders for regulating such offices of Master and Deputy Registrar, and specifying what business may be transacted in them.

The Orders made under this Act will be found near the end of this volume.

Partition.

13 and 14 Vic.
Ch. 50,
Sec. 4,5,6.

This Statute also provides for the Partition of Estates held in joint tenancy, tenancy in Common or Coparcenery. The same power in this respect is given to the Court as is exercised by the Court of Chancery in England, and as

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